

BTJ

Date: 4/22/2016

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 6.08.020, KEEPING OR SLAUGHTERING OF CERTAIN ANIMALS—RESTRICTIONS WITHIN THE CITY, OF CHAPTER 6.08, ANIMAL CARE AND CONTROL REGULATIONS GENERALLY, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 6.08.020, Keeping or slaughtering of certain animals—Restrictions within the city, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the code of the city of Cheyenne, Wyoming, is amended as set out in this ordinance. Provisions currently existing within Chapter 6.08 not set out within this ordinance remain unchanged.

6.08.020 Keeping or slaughtering of certain animals—Restrictions within the city.

- A.** Except as provided within this title, no person may keep or slaughter within the city any cattle, cows, horses, swine, goats, ~~chickens~~, ducks, geese, turkeys, guinea fowl, nonhuman primates or other livestock.
- D.** Chickens may be kept on any eligible lot, as defined in subsection D.,3., of this section, subject to the following requirements and all other applicable provisions of this chapter:
 - 1.** It shall be unlawful to keep, possess, or maintain live roosters (male chickens) anywhere in the city. Only live hens (female chickens) may be kept, and all references herein to chickens or poultry shall mean hens only.
 - 2.** It shall be unlawful to keep, possess or maintain more than six hens on any eligible lot within the city.
 - 3.** For the purposes of this chapter, the term "eligible lot" is defined as any lot that contains no more than one detached single family residential dwelling unit that is occupied as a personal residence by at least one adult who shall be responsible for compliance with the provisions of this chapter. An "eligible lot" may also include an accessory dwelling unit approved under the Unified Development Code.
 - 4.** Chickens must be confined within a covered, predator-resistant coop, including predator-resistant roofing and flooring, located in the backyard

(rear) of the eligible lot. The coop must be adequately ventilated and easily accessed, cleaned, and maintained. The coop must provide at least three square feet of space for each hen. The coop must comply with all applicable provisions of Title 8 and Title 15 of the Cheyenne city code and with applicable provisions of the Unified Development Code. No coop shall have an enclosed floor space exceeding sixty (60) square feet, and no portion of any coop or pen shall exceed a height of seven feet from the ground surface at any point.

5. During daylight hours, each chicken must have access to the coop and to a pen surrounding the coop that shall be totally enclosed to prevent escape and to protect the chickens from predators. Chickens must be enclosed within the coop each day from sundown to sunrise on the following day.
6. During daylight hours, chickens may be permitted to roam outside the pen, described in subsection 4 of this section, and within the backyard, so long as they are confined within an area enclosed by a solid fence not less than six feet in height. Any such fence must comply with applicable requirements of the Unified Development Code. The chickens' wings shall be clipped to prevent them from escaping over the fence.
7. It is unlawful for any chickens to be at large, as defined in Section 6.04.020. Any chickens found at large may be taken into possession and impounded by the animal control authority defined in Section 6.04.020 of this chapter. Any chickens not reclaimed within two business days may be euthanized.
8. The coop and pen must be cleaned and maintained such that the coop and pen do not become a nuisance or attract excessive insects or vermin. Chicken waste, including unharvested eggs, is subject to the requirements of Section 6.08.140 of this Chapter.
9. Chickens shall be provided with sufficient potable liquid water at all times. Chicken feed shall be stored in secured containers to prevent access by mice, rats, and other vermin.
10. It shall be unlawful to possess, keep or maintain live chickens in a dwelling unit of any kind.
 - a. All lot owners (including any purchaser under a contract for deed) and adult residents of the eligible lot, including those residing in any accessory dwelling unit on the same lot, must consent in writing to keeping chickens on the lot. The consent of an individual lot owner or adult resident shall be effective and may be

revoked in the same manner as described in paragraph 10.c., of this subsection.

- b. No chickens may be kept on an eligible lot unless all owners and all adult residents of adjacent lots consent in writing. For the purposes of the consent requirement of this paragraph, an “adjacent lot” means any lot that touches an eligible lot at any point, including corner to corner touching. A lot separated from the eligible lot only by an easement that does not provide for public vehicular, bicycle or pedestrian access, is deemed to be an adjacent lot for the purposes of the consent requirement of this paragraph.
 - c. The consent of an adjacent owner or an adult resident shall be irrevocable for a period of one hundred eighty (180) days from the date consent is given in writing. After the expiration of one hundred eighty (180) days, an adjacent owner or adult resident may revoke consent by providing a written notice of revocation to the record owner(s) of the eligible lot and to any person keeping chickens on the eligible lot that was the subject of the original consent. Upon receiving written notice of the revocation of consent from any adjacent owner or adult resident, the owners and occupants of the eligible lot shall have sixty (60) days to remove all chickens.
 - d. Rights-of-way and other public access areas that may be lawfully used for public vehicular, bicycle or pedestrian access (*e.g.* streets, alleys, sidewalks, greenways, parks, plazas, parking facilities, and playgrounds) that are adjacent to an eligible lot shall not be considered to be adjacent properties for the purposes of the consent requirement of paragraph 10.b., of this section, provided however, that no portion of a coop or pen may be located within six feet of an adjacent right-of-way or other public access area.
11. This ordinance does not supersede or affect the validity or enforceability of private lot restrictions, restrictive covenants, home owners’ association agreements, or any other agreement or arrangement that may limit or prohibit the keeping of chickens.
12. Chickens may not be killed within the city by or at the direction of the owner or keeper thereof, except pursuant to the lawful order of state or county health officials, or for the purpose of euthanasia when surrendered to a licensed veterinarian for such purpose, or as otherwise expressly permitted by law.

13. The carcass of a dead chicken must be disposed of in accordance with Section 6.08.130 of this Chapter.

14. This ordinance does not exempt any person from compliance with the provisions of Title 6 of the Cheyenne city code. This section shall be enforced pursuant to section 6.04.040 of this title.

E. The city/county health officer may issue an order prohibiting the keeping of any animals, fowl or bird which poses a health hazard to the general public pursuant to city ordinances, or state and federal laws pertaining to public health.

Section 2. That this ordinance shall be in full force and effect upon its passage and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

Richard L. Kaysen, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle